

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
(JUDICIAL DEPARTMENT)

Civil Revision No.697-D-2015

Jan Muhammad, etc. versus Ahmad Bukhsh, etc.

Sr. No. of Order/ Proceeding	Date of Order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
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01.04.2026 Mr. Azmat Islam, Advocate for the petitioners.

Through instant Civil Revision, instituted under Section 115 of the Code of Civil Procedure, 1908 (the “CPC”), the petitioners have called into question the legality and propriety of the judgment and decree dated 07.04.2015 passed by the learned Appellate Court, whereby the appeal preferred by the respondents was accepted, and the judgment and decree dated 11.11.2011 rendered by the learned Trial Court was upended, resulting into the dismissal of suit for declaration and permanent injunction instituted by the present petitioners.

2. Succinctly stated, the petitioners instituted a suit for declaration and permanent injunction with the assertion that the suit property measuring 09 Kanal 02 Marla, situated in Mauza Mohib Laskani, originally belonged to one Jalal son of Lal, their paternal grandfather. Upon his demise, he was survived by two sons, *namely*, Wali Muhammad and Lal, and one daughter, *namely* Mst. Pathani. The gravamen of the petitioners’ claim is that mutation of inheritance No. 345 dated 19.01.1929 was fraudulently sanctioned exclusively in favour of Lal and Mst. Pathani, thereby unlawfully excluding their predecessor-in-interest, Wali Muhammad, from his legitimate share in the inheritance. It was further averred that such exclusion was bereft of lawful justification and in patent derogation of the settled principles of inheritance. The

petitioners further contended that subsequent mutations and alienations were affected on the strength of the said flawed mutation, including transfers in favour of defendants No. 11 to 13, who purportedly claimed the status of *bona fide* purchasers.

3. It was the case of the petitioners that upon discovering the alleged illegality shortly prior to the institution of the suit in the year 2007, they approached the defendants for rectification of the record, however, their request was declined, thereby constraining them to institute the present *lis*.

4. The learned Trial Court, after framing requisite issues and recording evidence, decreed the suit in favour of the petitioners *vide* judgment dated 11.11.2011 holding that Wali Muhammad had been unlawfully deprived of his inheritance. However, the learned Appellate Court, through its judgment dated 07.04.2015, reversed the findings of the learned Trial Court and dismissed the suit, primarily on the grounds of inordinate delay of approximately 78-years and the failure of predecessor-in-interest of the petitioners to challenge the mutation during his lifetime.

5. Learned counsel for the petitioners, while assailing the impugned judgment and decree, contended with vehemence that the same was the product of gross misreading and non-reading of evidence and, thus, legally untenable. It was argued that the learned Trial Court had judiciously appreciated the evidence on record and had rendered findings strictly in consonance with law, holding that Wali Muhammad, being a natural legal heir of the deceased Jalal, could not have been divested of his inheritance without lawful cause. It was further contended that the mutation in question was void *ab initio*, being contrary to settled principles of inheritance, and therefore incapable of creating

or extinguishing any legal right. Learned counsel emphasized that the entries in the revenue record are merely fiscal in nature and do not confer title. It was further argued that the learned Appellate Court gravely erred in dismissing the suit on the ground of delay, ignoring the well-entrenched principle that inheritance rights are recurring in nature. According to learned counsel, fraud vitiates even the most solemn transactions, and once it is established that a mutation was the result of fraud or illegality, the same can be challenged at any stage. The plea of *bona fide* purchaser raised by the respondents was also assailed on the ground that no valid title could pass on the basis of a void transaction. It was, thus, prayed that the impugned judgment and decree be set aside and that of the learned Trial Court be restored.

6. I have heard the learned counsel for the petitioners at considerable length and have meticulously examined the record with their able assistance.

7. The most striking and determinative feature of the present *lis* is the extraordinary, inordinate, and wholly unexplained delay. It is an admitted and incontrovertible position that the mutation in question was sanctioned in the year 1929, whereas the suit was instituted in the year 2007, after an astonishing lapse of approximately 78-years. It is equally an admitted fact that Wali Muhammad, the predecessor-in-interest of the petitioners, remained alive for decades after the sanctioning of the impugned mutation, yet he did not challenge same during his lifetime. No plausible, cogent, or convincing explanation has been furnished either in the plaint or through evidence to justify such prolonged and deafening silence.

8. There is no cavil to the proposition that the limitation for filing a suit for declaration under Article 120 of the

Limitation Act, 1908 is six years, whereas for cancellation of an instrument under Article 91 thereof is three years. The omission of the predecessor to assert his rights beyond the prescribed period is not a mere procedural lapse but goes to the very root of the matter. The law is well settled that rights which are not asserted for an inordinately long period are presumed to have been abandoned. The doctrine of *laches* squarely applies, and equity does not favour those who slumber over their rights. Conversely, upon the efflux of the prescribed limitation period, a vested right accrues in favour of the opposite party. In this regard, reliance is placed upon the judgments reported as Muhammad Nawaz and others vs. Mst. Saina Bibi and others (1974 SCMR 223) and Central Board of Revenue, Islamabad vs. Messrs Raja Industries (Pvt.) Ltd. (1998 SCMR 307), wherein it has been unequivocally held that compliance with statutory limitation is mandatory and cannot be circumvented even in the absence of an objection by the adversary party. Thus, the learned Appellate Court committed no illegality in passing the impugned judgment and decree.

9. The petitioners claim their right through Wali Muhammad. It is a trite and well-entrenched principle of law that a successor cannot claim a better title than that of his predecessor. When the predecessor himself failed to challenge the mutation during his lifetime, the petitioners cannot be permitted to resurrect stale and time-barred claims after several decades without any plausible justification. The learned Appellate Court has rightly held that where a predecessor-in-interest does not challenge an adverse entry during his lifetime, the successors are precluded from doing so after an inordinate delay. In this regard, guidance may be sought from the authoritative pronouncements of the superior Courts in Muhammad Suleman vs. Riasat Ali (2002 SCMR 1330), Kala Khan and others vs. Rab Nawaz and others

(2004 SCMR 517), Muhammad Rustam and another vs. Mst. Makhan Jan and others **(2013 SCMR 299)**, Ghulam Abbas and others vs. Muhammad Shafi **(2016 SCMR 1403)**, and Nasir Fahimuddin and others vs. Charles Philips Mills and others **(2017 SCMR 468)**. The relevant extract from the last cited judgment is reproduced hereunder:

“This aspect of the matter has to be viewed in light of the conduct of lady Patinger because she had lived for about 33 years and despite that had never ever asserted herself to be owner of the suit property. Obviously in such circumstances her conduct would prove that she was not claiming the ownership of the property and, therefore, was estopped in terms of Article 114 of the Qanun-e-Shahadat Order, 1984. Consequently, no valid locus standi would pass on to her son for claiming ownership and thus son could not have passed a valid title in favour of respondent No.2.”

10. Another significant facet of the case is that numerous mutations and transfers have taken place on the basis of the impugned mutation, thereby creating valuable rights in favour of third parties, including subsequent purchasers. Long-standing entries in the revenue record carry a presumption of correctness, which becomes fortified and strengthened with the passage of time. Any attempt to unsettle such entries after several decades would inevitably result in uncertainty, instability, and chaos in property relations. Even otherwise, the long-standing entries in the revenue record made in favour of the respondents are protected under Section 52 of the West Pakistan Land Revenue Act, 1967, which for ready reference is reproduced hereunder:

“52.Presumption in favour of entries in record-of-rights and periodical record.----*Any entry made in a record-of-rights in accordance with the law for the time being in force, or in a periodical record in accordance with the provisions of this Chapter and the rules made thereunder, shall be presumed to be true until the contrary is proved or a new entry is lawfully substituted therefor.”*

This principle has also been strengthened in the judgments reported as Hakim Khan vs. Aurangzeb and another (1979 SCMR 625), Mst. Phaphan through L.Rs. vs. Muhammad Bakhsh and others (2007 SCMR 655) and Muhammad Khaliq (deed) through Legal Heirs vs. Gul Afzal Khan and others (PLD 2015 SC 247). The plea that subsequent purchasers are not protected cannot be accepted in isolation, particularly when the foundational transaction remained unquestioned for decades.

11. While it is correct that inheritance rights may, in certain circumstances, be recurring in nature, this principle is not absolute and is invariably subject to equitable considerations, including delay, acquiescence, and the conduct of the parties. In the present case, the delay spans nearly eight decades, which is not only extraordinary but wholly inexcusable, and cannot be condoned under the garb of inheritance. Reliance in this regard is placed upon “Syed Kausar Ali Shah and others v. Syed Farhat Hussain Shah and others” (2022 SCMR 1558) and “Mst. Grana through Legal Heirs and others v. Sahib Kamala Bibi and others” (PLD 2014 SC 167). The relevant extract from the latter judgment is reproduced hereunder:

“It emerges from the afore discussed case-law that the law of limitation is not entirely to be ignored or brushed aside whenever property is claimed on the basis of inheritance. The conduct of such claimant may become relevant and material when the bar of time limitation is pleaded by the adversary. A defendant may show that the plaintiff by her or his acts, overt or implicit, had demonstrated acquiescence in the defendant’s title to the suit properly thereby allowing him to deal with it as exclusive owner, for instance regularly and openly disposing of parts of the property or developing it at his own expense over a period of time within the knowledge of the plaintiff. When in such circumstances the defendant/heirs transfers the property for valuable consideration the transferee is entitled to believe that the transferor

had a valid title to transfer. It may be reiterated that in Ghulam Ali's case the question of interest protection of transferees from a legal heir in a suit of inheritance was left open as the transferees were not impleaded as defendants. That is not the case here. The very facts of this case would demonstrate that the plaintiff had acquiesced in the various transfers made of the suit property from time to time."

12. Furthermore, it is now a settled proposition of law that where, prior to the enforcement of the Punjab Muslim Personal Law (Shariat) Application Act, 1948, agricultural land devolved under custom, the person acquiring such land shall be deemed to have become its absolute owner by virtue of Section 2-A of the West Pakistan Muslim Personal Law (Shariat) Application Act, 1962. The relevant provision is reproduced hereunder:

"2-A. Succession prior to Act (IX of 1948).— Notwithstanding anything to the contrary contained in section 2 or any other law for the time being in force, or any custom or usage or decree, judgment or order of any Court, where before the commencement of the Punjab Muslim Personal Law (Shariat) Application Act, 1948, a male heir had acquired any agricultural land under custom from a person who at the time of such acquisition was a Muslim:-

(a) he shall be deemed to have become, upon such acquisition, an absolute owner of such land, as if such land had devolved on him under the Muslim Personal Law (Shariat);

(b)-----

(c)-----"

13. In the instant case, it stands amply established through both oral as well as documentary evidence that the rule of inheritance at the relevant time was governed by custom, and that prior to 1948, a person acquiring such agricultural land became its absolute owner. The august Supreme Court of Pakistan, in the case of Ghulam Haider and others vs. Murad through Legal Representatives and others (PLD 2012 SC 501), has authoritatively held as under:

“For what has been discussed above, we have entertained no manner of doubt that by virtue of section 2-A introduced through Ordinance XIII of 1983, a male heir acquiring any agricultural land in the Province of the Punjab before March 15, 1948 under custom from a person who at the time of such acquisition was a Muslim was to be deemed to have become, upon such acquisition, an absolute owner of the entire land acquired by him as if such land had devolved on him under the Muslim Personal Law (Shariat).”

Reliance in this regard is also placed upon the judgments reported as Bashir Ahmed vs. Abdul Aziz and others (2009 SCMR 1014) and Muhammad Nawaz and others vs. Fateh Sher and others (2008 SCMR 1658).

14. The learned Appellate Court has undertaken a comprehensive, penetrating, and judicious appraisal of the evidence and has recorded findings which are not only well-reasoned but also firmly anchored in law. No misreading or non-reading of evidence has been demonstrated. The findings are neither perverse nor arbitrary. Conversely, the learned Trial Court appears to have glossed over the most material aspects of the case, particularly the inordinate delay and the conduct of the predecessor, which were rightly taken into account by the learned Appellate Court.

15. After having perused the findings of the learned Appellate Court with respect to dismissing the suit for declaration filed by the petitioners, this Court is convinced that there was sufficient material in the form of oral as well as documentary evidence available with the learned Appellate Court to vary with the judgment and decree passed by the learned Trial Court as it is settled law that in case of difference of opinions in the judgments and decrees passed by the learned Trial Court and the learned Appellate court, the view expressed by the latter shall be given preference and weightage. Reliance in this regard is placed on the Judgments

reported as Madan Gopal and 4 others Vs. Maran Bepari and 3 others (PLD 1969 SC 617), Muhammad Nawaz through LRs. Vs. Haji Muhammad Baran Khan through LRs and others (2013 SCMR 1300), Amjad Ikram Vs. Mst. Asya Kausar and 2 others (2015 SCMR 1), Muhammad Yasin through L.Rs. and others vs. Muhammad Latif and others (2016 CLC 553) and Rao Abdul Rehman (deceased) through legal heirs Vs. Muhammad Afzal (deceased) through legal heirs and others (2023 SCMR 815)

16. Additionally, it is also pertinent to observe that the jurisdiction of this Court under Section 115 of CPC is circumscribed, supervisory in nature, and markedly narrower than that of an appellate Court. The revisional jurisdiction is not intended to provide a forum for re-hearing on facts or law, nor does it permit this Court to reappraise or re-evaluate the evidence on record merely because another view is possible or even preferable. The object of Section 115 CPC is to ensure that subordinate Courts perform within the bounds of their lawful authority and in accordance with settled principles of law. Accordingly, interference in revision is warranted only in exceptional circumstances, namely: (i) where the subordinate Court has exercised a jurisdiction not vested in it by law; (ii) where it has failed to exercise jurisdiction so vested; or (iii) where, in the exercise of its jurisdiction, it has acted with material irregularity or illegality. Even in such cases, the revisional power is to be exercised sparingly, with caution, and only to prevent a grave miscarriage of justice.

17. The petitioners have failed to establish any jurisdictional defect, illegality, or material irregularity in the impugned judgment and decree warranting interference by this Court in exercise of its revisional jurisdiction.

18. Consequently, this Civil Revision, being devoid of merit, is hereby **dismissed**.

(MUHAMMAD RAZA QURESHI)
JUDGE

Syed Zameer